



CHAPTER lxxiv.

An Act to empower the mayor aldermen and burgesses of the borough of Dewsbury to construct an additional tramway to confer further powers upon them in regard to their tramway gas and electricity undertakings and with respect to the disposal of trade refuse and to make further provision for the improvement health and good government of the said borough and for other purposes. A.D. 1915.
[29th July 1915.]

WHEREAS the borough of Dewsbury in the west riding of the county of York is a municipal and county borough under the government for municipal and other purposes of the mayor aldermen and burgesses of the borough of Dewsbury (hereinafter called "the Corporation") who are also the urban sanitary authority for the district of the borough:

And whereas the Corporation are the owners of tramways and light railways in the borough which are worked by certain companies under leases or agreements granted by or made with the Corporation:

And whereas the Corporation are authorised by the Dewsbury Corporation Tramways Order 1911 (which was confirmed by the Tramways Orders Confirmation Act 1911) and by the Dewsbury Corporation Tramways Order 1912 (which was confirmed by the Tramways Orders Confirmation Act 1912) to construct further tramways in the borough and in order to secure the efficient working of those tramways it is expedient to enact the provisions in regard thereto contained in this Act and it is expedient to confer further powers upon the Corporation in relation to their tramway undertaking:

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And whereas in pursuance of powers conferred upon them by the Dewsbury and Batley Corporations (Gas) Act 1873 the Corporation were empowered to manufacture and supply gas within the borough and to purchase and carry on so much of the undertaking of the Dewsbury and Batley Gas Company as was within so much of the company's limits as comprised the borough (as then constituted) and certain parts of the townships of Thornhill and Soothill and the Corporation are supplying gas throughout the greater part of the borough in pursuance of that Act and of powers conferred upon them by subsequent enactments :

And whereas it is expedient to extend the limits within which the Corporation may supply gas and to confer further powers upon them in relation to their gas undertaking :

And whereas by the Dewsbury Electric Lighting Order 1891 (which was confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1891) and subsequent enactments the Corporation are empowered to supply electrical energy for public and private purposes within the borough and it is expedient to make further provision in regard to their electricity undertaking :

And whereas it is expedient that better provision should be made (as in this Act provided) with regard to the removal and disposal of trade refuse proceeding from mills factories and trade premises within the borough by means of the sewers of the Corporation and for regulating and defining the respective rights of the Corporation and of the owners and occupiers of such mills factories and trade premises in reference thereto :

And whereas it is expedient to make further and better provision with respect to streets and buildings in the borough and that the powers of the Corporation in regard to the health local government and improvement of the borough be enlarged as by this Act provided :

And whereas the Corporation are one of the constituent authorities of the Dewsbury and Heckmondwike Waterworks Board and are the authority for the supply of water in their borough and it is expedient to confer further powers upon them for borrowing money and to make further provision in regard to their water undertaking :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament: A.D. 1915.

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

- | | |
|---|------------|
| (a) For the construction of the tramway authorised by this Act and other purposes of the tramway undertaking of the Corporation - | £
1,190 |
| (b) For the provision of the electrical equipment and other works necessary for working the tramway authorised by this Act - | 200 |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas a plan and section showing the lines and levels of the work authorised by this Act were duly deposited with the clerk of the peace for the west riding of the county of York and are in this Act respectively referred to as the deposited plan and section:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Dewsbury Corporation Act 1915. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Tramway Provisions.

Part III.—Gas Supply.

Part IV.—Electricity.

Part V.—Trade Refuse.

Division of
Act into
Parts.

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Part VI.—Streets Buildings Sewers Drains &c.

Part VII.—Infectious Disease and Sanitary Provisions.

Part VIII.—Common Lodging-houses.

Part IX.—Financial Provisions.

Part X.—Miscellaneous Provisions.

Incorporation of Tramways Act 1870.

3. Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act Provided that the said section 19 shall be read and have effect as if the words “but nothing in this Act contained shall” “authorise any local authority to place or run carriages upon” “such tramway and to demand and take tolls and charges in” “respect of the use of such carriages” were omitted from that section.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Tramways Act 1870 or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Dewsbury ;

“The borough” means the county borough of Dewsbury ;

“The council” means the council of the borough ;

“The mayor” “the town clerk” “the treasurer” “the borough accountant” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the mayor the town clerk the treasurer the borough accountant the medical officer of health the surveyor and any inspector of nuisances for the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices ;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough ;

“Tramways” includes light railways ;

“Trade refuse” means any liquid either with or without particles of matter in suspension or solution therein which proceeds or results from or has been used in or in connection with any industry or trade within the borough;

“Sewer” means a sewer of the Corporation;

“Trader” means an owner or occupier of trade premises as defined by this Act or any person carrying on any business thereon or on any part thereof and discharging trade refuse therefrom and shall include a company corporation or firm owning or occupying any such trade premises or carrying on any such business;

“Trade premises” means any mill factory or premises situate within the borough from which any trade refuse shall for the time being be directly or indirectly discharged into the sewers of the Corporation or in respect of which notice of intention so to discharge shall have been given to the Corporation;

“Food” includes every article other than water used for food or drink by man;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 and any Act amending the same applies for the time being within the borough;

“Daily penalty” means a penalty for each day on which an offence is continued by a person after conviction therefor;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on

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loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation ;

“The Act of 1873” “the Act of 1884” “the Act of 1891” “the Order of 1904” “the Order of 1906” “the Order of 1911” and “the Order of 1912” mean respectively the Dewsbury and Batley Corporations (Gas) Act 1873 the Dewsbury Improvement Act 1884 the Dewsbury Improvement Act 1891 the Dewsbury Corporation Tramways Order 1904 the Dewsbury Corporation Tramways Order 1906 the Dewsbury Corporation Tramways Order 1911 and the Dewsbury Corporation Tramways Order 1912 ;

“The railway companies” means the Great Northern Railway Company the Lancashire and Yorkshire Railway Company the London and North Western Railway Company and the Midland Railway Company ; and

“A railway company” means any of those companies.

PART II.

TRAMWAY PROVISIONS.

Power to
make tram-
way.

5. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain within the borough the tramway hereinafter described in the lines and according to the levels shown on the deposited plan and section with all proper rails plates junctions turnouts crossings passing-places posts poles brackets wires waiting-rooms carriage-houses

sheds depôts buildings engines works and conveniences connected therewith (namely):— A.D. 1915.

A tramway (double line 5·36 chains in length) situate in the Market Place commencing by a junction with the light railway authorised by the Spen Valley Light Railway Order 1901 and terminating by a junction with Tramway No. 1 authorised by the Order of 1904.

6.—(1) The tramway and works authorised by the foregoing provisions of this Part of this Act shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the Order of 1904 the Order of 1906 and the Order of 1911 and of the enactments incorporated with those Orders respectively and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are applicable to and are not inconsistent with the provisions of this Act shall extend and apply to the said tramway and works. Works to form part of tramway undertaking of Corporation.

(2) Provided that no post or other apparatus shall be erected on any carriageway in connection with the tramway authorised by this Act except with the consent of the Board of Trade.

7. Nothing in this Part of this Act or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section. Protection of electrical works.

8. The tramway authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramway.

9.—(1) At the commencement in Wakefield Road of the tramway authorised by the Order of 1911 and at the commencement in Halifax Road of the tramway authorised by the Order of 1912 and at the commencement and termination of the tramway authorised by this Act the Corporation may make and maintain junctions with the existing tramways and light railways and the Corporation may execute and maintain all such Running powers.

A.D. 1915. — works and conveniences as they may deem necessary to effect the through working of the tramways authorised by the Orders of 1911 and 1912 and this Act and the supply of electricity to the carriages of the Corporation.

(2) The Corporation and any person working or running carriages over the tramways authorised by the Orders of 1911 and 1912 may run carriages with flanged wheels over and upon and may use with their carriages and their officers and servants for the purposes of any traffic so much of the tramway authorised by the Orders of 1904 and 1906 as is situate between the commencement of the tramway authorised by the Order of 1911 and the termination of the tramway authorised by this Act together with the rails posts electric lines works and conveniences connected with so much of the said tramway as aforesaid and may demand and take in respect thereof the rates and charges authorised by the Orders relating thereto.

(3) For the purpose of moving and lighting the carriages run on the portion of tramway referred to in subsection (2) of this section the Corporation or other the person by whom the powers of that subsection are exercised shall be entitled to take and shall be supplied with electricity by means of the said electric lines works and conveniences.

(4) The exercise of the power to make junctions of the running powers and of the power to take electricity conferred by this section shall be subject to such terms and conditions as may be agreed between the Corporation and the company by whom the tramway or railway in respect of which such powers are exercised is worked or as failing such agreement shall be determined by an arbitrator appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

(5) Except as by this section provided nothing contained in this section shall prejudice or affect the rights of the parties under the leases and agreements in pursuance whereof the said light railways and tramways are worked.

(6) Subject to the terms of any lease granted by the Corporation to any company of the tramway authorised by the Order of 1911 or of the tramway authorised by the Order of 1912 or of any agreement with any company for the working of those tramways or either of them the Company to whom such lease is granted or with whom such agreement is made shall be

entitled to exercise the powers conferred upon the Corporation A.D. 1915.
by this section.

(7) During the exercise of the running powers conferred by this section and for the purposes thereof the tramways over which such powers are exercised shall for the purpose of calculating maximum rates and charges or fares be considered as part of the tramways authorised by the Order of 1911 and the Order of 1912 respectively.

(8) The provisions contained in this section shall apply subject to the provisions contained in the agreement set forth in the First Schedule to this Act.

10. The agreement dated the twentieth day of April nineteen hundred and fifteen and made between the Corporation of the one part and the Yorkshire (Woollen District) Electric Tramways Limited of the other part set forth in the First Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Confirmation of agreement with tramway company.

11. The Corporation may appoint stages upon any of their tramways and may demand and take for every passenger travelling upon any such stage such reasonable fares rates or charges not exceeding the fares rates and charges authorised to be taken in respect of the tramways as may be determined by the Corporation.

Power to appoint stages.

12. The Corporation may appoint the stations and places from which the carriages on their tramways shall start or at which they may stop for the purpose of taking up or setting down passengers and may make regulations for fixing the time during which such carriages shall be allowed to remain at any such station or place.

Corporation may appoint stopping and starting places.

13. The restrictions contained in this Act and in the Order of 1904 as to fares for passengers shall not extend to any special carriages run upon the tramways of the Corporation or to any special service of such carriages on extraordinary occasions and in respect thereof the Corporation may demand and take such fares as they shall think fit but such restrictions shall apply only to the ordinary service of carriages appointed from time to time for the conveyance of passengers Provided that the running of such special service shall in no way curtail the ordinary service.

Restrictions not to apply to special carriages.

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Penalty for
malicious
damage.

14. If any person wilfully and unlawfully does or causes to be done with respect to any apparatus used for or in connection with the working of the tramways of the Corporation anything which is calculated to obstruct or interfere with the working of such tramways or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence shall be liable to a penalty not exceeding twenty pounds.

Shelters or
waiting-
rooms.

15. The Corporation may erect and maintain shelters or waiting-rooms for the accommodation of passengers and of the servants of the Corporation on the routes of any of the tramways of the Corporation and may use for that purpose portions of the public streets or roads but the Corporation shall not use for that purpose any portion of a public street or road outside the borough except with the consent of the road authority.

Lost pro-
perty.

16. Any property found in any tramcar of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the revenue account of the tramway undertaking.

Attachment
of signs in-
dicating
stopping
places to
lamp-posts
&c.

17.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of the tramways of the Corporation signs or directions indicating the position of stopping places for tramways Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing or to any pole post or standard belonging to a railway company except with their consent in writing. A.D. 1915.

18. The sections of this Act hereinafter mentioned shall not apply to the tramways owned by or leased to the Yorkshire (Woollen District) Electric Tramways Limited except with their consent but the powers of those sections may be exercised by that company with the consent of the Corporation. For protection of tramway company.

The sections hereinbefore referred to have the following marginal notes:—

Power to appoint stages;	Section 11.
Corporation may appoint stopping and starting places;	Section 12.
Restrictions not to apply to special carriages;	Section 13.
Shelters or waiting-rooms;	Section 15.
Lost property;	Section 16.
Attachment of signs indicating stopping places to lamp-posts &c.	Section 17.

PART III.

GAS SUPPLY.

19.—(1) From and after the passing of this Act the limits of the Corporation for the supply of gas shall extend to and include in addition to their existing limits the following areas (that is to say):— Extension of gas limits.

The urban district of Emley;

The urban district of Flockton; and

The urban district of Whitley Upper;

all in the west riding of the county of York.

(2) The Corporation shall have and may exercise within their limits for the supply of gas as extended by this Act all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have may exercise and are subject to within their limits for the supply of gas as existing immediately before the passing of this Act.

(3) All mains pipes and works laid down or executed by the Corporation before the passing of this Act for the purpose

A.D. 1915. — of supplying gas within the areas named in subsection (1) of this section shall for all purposes (including the borrowing of money) be deemed to have been laid down and executed under the powers of this Act.

(4) As from the expiration of any agreement made before the passing of this Act between the Corporation and the district council of any of the districts named in subsection (1) of this section or as from the expiration of a period of ten years from the thirtieth day of June nineteen hundred and fifteen (whichever shall be the earlier) the prices charged by the Corporation for a supply of gas to consumers in that district shall not exceed the prices charged by the Corporation under similar circumstances for a corresponding supply of gas to consumers in the borough by more than the following amounts (namely):—

In the urban district of Emley eightpence;

In the urban district of Flockton sixpence; and

In the urban district of Whitley Upper fourpence—
per thousand cubic feet.

Repeal of
provisions as
to illuminat-
ing power.

20. As from the first day of January nineteen hundred and sixteen—

(a) Every enactment in force immediately before that date whereby or by virtue whereof the gas supplied by the Corporation is required to be of a prescribed illuminating power shall cease to apply with respect to such gas:

(b) The Corporation shall cease to be under any liability or obligation to provide or maintain any apparatus for testing the illuminating power of such gas and shall be at liberty to remove any such apparatus which they have provided:

(c) The Corporation shall not be liable to any penalty in respect of any deficiency in the illuminating power of the gas supplied by them:

(d) Sections 38 (Quality of gas) 39 (Testing-place) and 40 (Burner) of the Act of 1873 are hereby repealed in their application to the Corporation and their gas undertaking.

Place and
method of
testing.

21.—(1) The existing testing-place at the gasworks of the Corporation shall be the prescribed testing-place for such of the purposes of the Gasworks Clauses Act 1871 as are applicable

for the purposes of this Act and the testing-place for the purposes of this Act. A.D. 1915.

(2) The Corporation shall prior to the first day of January nineteen hundred and sixteen provide at the testing-place apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the Metropolitan gas referees for testing the calorific power of gas and the Corporation shall at all times keep and maintain such testing-place and apparatus in good repair and working order.

(3) The gas supplied by the Corporation shall when tested in the mode and under the conditions for the time being prescribed by the Metropolitan gas referees be of a calorific power of five hundred British thermal units (the expression "British thermal units" being used in this Act as meaning British thermal units gross per cubic foot) and that power is in this Act referred to as "the standard calorific power":

Provided that the Corporation shall not be liable to any penalty or proceedings for or in respect of deficient calorific power of the gas so supplied by them except in accordance with the provisions contained in this Act.

(4) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Corporation and sections 28 to 33 of that Act shall in their application to the Corporation be construed as if calorific power were therein mentioned in lieu of illuminating power.

22. The following provisions shall apply with respect to the testing for calorific power of the gas supplied by the Corporation (that is to say):— Provisions as to testing for calorific power.

- (1) Not more than one testing for calorific power shall be made on any one day (reckoned from midnight to midnight) except that in the event of the calorific power being on any testing ascertained to be below the standard calorific power a second testing shall be made on the same day but at an interval of not less than one hour from the time of making the first testing and the average of the two testings shall be deemed to be the calorific power of the gas on that day:

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(2) The gas examiner shall forthwith deliver a report of the result of his testing to the local authority or to the justices by whom he was appointed and to the Corporation and that report shall be receivable in evidence.

Penalties for
deficient
calorific
power.

23. If on any testing the calorific power of the gas supplied by the Corporation is found to be below the standard calorific power the Corporation shall be liable to the following penalties in respect of such deficiency (that is to say):—

If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds:

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds:

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

Saving as to
penalties.

24. No penalty shall be incurred by the Corporation for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Corporation. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Corporation.

Power to lay
down pipes
for ancillary
purposes.

25. The Corporation may lay down place repair alter remove and renew mains pipes and culverts and other apparatus within their limits for the supply of gas for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when so laid shall so far as applicable for the purposes of this section extend and apply mutatis mutandis to and for the purposes thereof.

Power to
enter pre-
mises and
remove
fittings.

26. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Corporation by section 22 (Power to remove meter and fittings) of the Gasworks Clauses Act 1871 shall extend to all cases in which any person

entering into occupation of any premises previously supplied with gas by the Corporation shall not require to take a supply of gas from the Corporation or to hire from the Corporation all or any of the pipes meters fittings or apparatus belonging to the Corporation and let by them on hire to any former occupier of such premises. A.D. 1915.

27.—(1) Any gas stoves gas engines or fittings let for hire under the provisions of section 7 (Power to sell &c. water fittings gas stoves &c.) of the Act of 1884 shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Corporation: Fittings to continue property of Corporation.

Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such gas stoves gas engines or fittings are or shall be fixed.

(2) The Corporation shall only be entitled to the privileges and exemptions conferred by subsection (1) of this section in respect of such of the said gas stoves gas engines or fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof.

28. The Corporation may enter into and carry into effect agreements with any company or person for the supply of gas in a crude or partially purified state by such company or person to the Corporation for such remuneration on such terms and conditions and for such period as the Corporation may think fit. Corporation may contract for purchase of gas.

29. In executing the works and exercising the powers authorised by this Part of this Act so far as they affect any main road repairable by or at the cost of the county council of the west riding of Yorkshire (in this section called "the county council") the following provisions for the protection of the county council shall have effect unless otherwise agreed in writing between the county council and the Corporation (that is to say):— For protection of West Riding County Council.

(1) All mains pipes or works to be laid in or along any such main road shall so far as is reasonably practicable be constructed and laid in such position at

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—

the side thereof as the county council shall by writing under the hand of their surveyor reasonably direct
Provided that this subsection shall not apply to service pipes :

- (2) Except in cases of emergency and except when the works consist of service pipes the notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such main road be not less than seven clear days instead of three clear days and the plan required by section 9 of the last-mentioned Act shall be delivered to the county council or their surveyor by the Corporation not less than twenty-one days before the Corporation commence to open or break up any main road for the purpose of executing the works :
- (3) All works shall be executed by the Corporation so as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such main road and the Corporation shall not break up at any one time a greater length than three hundred yards of any main road :
- (4) Notwithstanding anything contained in this Act it shall be lawful for the county council at any time or times to divert widen or improve any main road vested in and repairable by them in which any such mains pipes or works are laid in the same manner as they might have diverted widened or improved such main road if this Act had not been passed and such mains pipes or works had not been laid in such main road And in the event of any such main road as aforesaid or any other main road in which any such mains pipes or works are laid being diverted widened or improved at the expense of the county council or of the county council and any other authority the Corporation shall as and when requested by the surveyor of the authority carrying out such diversion widening or improvement remove or alter the position of their said mains or pipes and replace the same in such position as the said surveyor shall reasonably direct Provided that before and during such diversion widening or improvement of any such main road the county council or such other authority as aforesaid shall afford at the

cost of the Corporation reasonable facilities for temporarily carrying such mains or pipes along the main road so as not to interrupt the continuous supply of gas :

(5) If any difference shall arise—

(a) between the Corporation and the county council with respect to any main road vested in and repairable by the county council touching this section or anything to be done or not to be done thereunder or the giving of any direction or making of any requirement thereunder ; or

(b) between the Corporation on the one hand and the county council and the authority in whom any other main road is vested on the other hand with respect to any direction or requirement relating to such last-mentioned road—

such difference shall be settled by arbitration by an arbitrator to be agreed upon by the parties in difference or failing such agreement to be appointed by the Board of Trade on the application of either or any of such parties and any difference between the Corporation and the county council with respect to any such road as first aforesaid which shall arise under section 9 of the Gasworks Clauses Act 1847 shall be determined by arbitration under this subsection instead of in the manner provided by that section :

Provided that if with respect to any main road which is not vested in and repairable by the county council any direction or requirement of the county council under or pursuant to this section shall conflict with any direction or requirement made pursuant to the said Gasworks Clauses Act by the authority in whom such road is vested the matter so in difference shall (if not settled by agreement between the county council and such authority) be settled by arbitration in manner hereinbefore provided and the Corporation shall be at liberty if they think fit to be a party to any such arbitration :

The provisions of the Arbitration Act 1889 shall apply to any arbitration under this section.

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Application
of gas
revenue and
payment of
deficiency.

30.—(1) Section 50 (Application of gas revenue of Dewsbury Corporation) of the Act of 1873 shall be read and have effect as if the district fund and general district rate were therein mentioned instead of the borough fund and the borough rates leviable by the Dewsbury Corporation.

(2) Any deficiency in the revenue of the Corporation on account of their gas undertaking which is not made good out of their contingency or depreciation fund shall be made good out of the district fund.

(3)—(a) Provided that the total amount payable by a railway company in respect of the borough rate and of the general district rate shall be the same as if this section had not been enacted and as if any sum which the Corporation shall in pursuance of this section carry to the district fund had been carried to the borough fund and applied in the manner authorised by the said section 50.

(b) The Corporation shall serve with or endorse on the demand note served on a railway company for the general district rate particulars showing how the provisions of this subsection have been given effect to.

(c) Any difference between the Corporation and a railway company under this subsection shall be determined by an arbitrator to be appointed failing agreement by the President of the Surveyors' Institution.

Saving as
to general
Acts.

31. Nothing in this Act shall exempt the Corporation or their gas undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

PART IV.

ELECTRICITY.

Electrical
fittings.

32.—(1) The Corporation may subject to the provisions of this section sell let for hire and fix repair and remove but shall not manufacture lamps electric lines fuses switches lamp holders motors and other electrical fittings for lighting motive or other purposes (all of which are in this section included in the expression "fittings") and may provide all materials and work necessary or proper in that behalf and with respect thereto may make such charges and such terms and conditions as may be agreed upon.

(2) The Corporation shall not themselves execute the wiring of private property except between the main of the Corporation and the consumer's meter but they may enter into contracts for the execution of any of the powers of this section including the wiring of private property provided that the contractor acts independently of the Corporation in the execution of the contract. A.D. 1915.

The Corporation shall not sell any such fittings except through a contractor carrying on his business independently of the Corporation.

(3) The provisions of section 16 (Electric lines &c. let on hire though fixed to premises to remain the property of undertakers) of the Electric Lighting Act 1909 shall with any necessary modifications apply to any fittings let on hire under this section.

(4) Provided as follows:—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet the sum properly chargeable for the costs and expenses incurred by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(b) The sums properly chargeable and received by the Corporation in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Corporation for that year:

(c) Every sum charged by the Corporation to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Corporation to the consumer.

33. The Corporation may in connection with and for the purposes of their electricity undertaking fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which electrical energy can be put and may appoint and pay persons for the purposes aforesaid. As to offices
showrooms
&c.

A.D. 1915.

Power to
refuse to
supply elec-
tricity in
certain cases.

34. The Corporation may refuse to supply electricity to any person whose payments for the supply of electricity or meter rent are for the time being in arrear (not being the subject of a *bonâ fide* dispute) whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Provisions as
to supply of
electricity by
agreement.

35.--(1) If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement:

Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify the respect in which the electricity is used contrary to the terms of such agreement.

(2) A consumer supplied with electrical energy by the Corporation under the terms of any agreement shall be deemed to be a person to whom the Corporation may be and are required to supply energy within the meaning of section 23 (Penalty for failure to supply) of the Dewsbury Electric Lighting Order 1891 and the provisions of that section shall apply to the supply afforded by the Corporation under such agreement unless the provisions of that section are expressly excluded from application in any such agreement and if the Corporation fail to supply energy to such consumer they shall not be liable for any damages occasioned to such consumer by reason of such failure unless the same is caused by or in consequence of the wilful neglect or default of the Corporation:

Provided that the provisions of this subsection shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

As to maxi-
mum power
which may
be demanded.

36.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of energy taken only on extraordinary occasions or as a stand-by supply unless such consumer

shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for those premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 (Arbitration) of the Electric Lighting Act 1882. A.D. 1915.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the date of this Act of any right to which he would be entitled but for the said provisions.

37.—(1) Any person who shall hinder an officer appointed by the Corporation from entering any premises in pursuance of section 24 (Power to enter lands or premises for ascertaining quantities of electricity consumed or to remove fittings &c.) of the Electric Lighting Act 1882 or from exercising the powers contained in that section shall be liable to a penalty not exceeding forty shillings and a daily penalty not exceeding twenty shillings. Further powers as to entry upon premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he is unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

38.—(1) In the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. Period of error in defective meters.

(2) The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

39.—(1) The Corporation may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not repairable by the inhabitants at Power to lay electric mains in private streets.

A.D. 1915. — large within their area for the supply of electricity supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electric Lighting Act 1882 and of the Dewsbury Electric Lighting Order 1891 (confirmed by the Electric Lighting Orders Confirmation (No. 1) Act 1891) with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes hereof.

(2) Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depôt of a railway company nor shall the Corporation in carrying out such works unreasonably obstruct or interfere with the convenient access to any such street.

As to ex-
penses and
receipts.

40.—(1) Any expenses incurred by the Corporation in carrying into effect the provisions of this Part of this Act relating to the supply of electricity and for which no other provision is made by this Act shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of section 7 (Expenses of local authority) and section 8 (Power of local authority to borrow money) of that Act shall extend and apply accordingly to such expenses.

(2) Any moneys received by the Corporation under the said provisions shall be applied in manner provided by section 52 (Application of revenue) of the Dewsbury Electric Lighting Order 1891 except capital moneys which shall be applied in manner provided by section 53 (Application of capital moneys) of that Order.

PART V.

TRADE REFUSE.

Powers of
Public
Health Acts
to apply.

41. The Corporation shall for the purposes and subject to the provisions of this Part of this Act have the like powers and duties with respect to the construction and maintenance of sewers and the removal treatment and disposal of trade refuse and the purchase and taking of lands by agreement or otherwise than by agreement and the borrowing and expenditure of money and execution of works as they have for the construction and maintenance of sewers and the removal and disposal of sewage under

the Public Health Acts and all the provisions of those Acts and of any Act incorporated therewith so far as applicable and not inconsistent with this Part of this Act shall apply accordingly. A.D. 1915.

42.—(1) Subject to the provisions of this Part of this Act any trader may require the Corporation to receive and dispose of the trade refuse produced on his trade premises and shall be entitled to discharge or continue to discharge such trade refuse through any drains communicating with a sewer and for such purpose shall be entitled subject to the delivery to the Corporation of plans and sections thereof and to the approval of the Corporation of the same to enlarge or alter such drains or construct new drains and cause the same to empty into such sewers subject nevertheless to the provisions of section 21 (Power of owners and occupiers within district to drain into sewers of local authority) of the Public Health Act 1875. Traders may discharge trade refuse into sewers.

(2) Any trader requiring the Corporation to receive and dispose of any trade refuse from his trade premises as aforesaid or intending to discharge trade refuse into a sewer by any drain not used for such purpose at the date of the passing of this Act or proposing to enlarge or alter any drain used for the purpose of discharging any trade refuse into any sewer shall at least one month before so requiring or commencing to discharge or to enlarge or alter any such drain serve the Corporation with notice of his requirement or intention or proposal as aforesaid and stating the branch of industry or trade carried on by him on the trade premises affected thereby and whether he occupies such premises or any part thereof as owner or tenant and in the latter case shall state the name and postal address of the owner.

(3) The provisions of this section shall not come into force until the expiration of twelve months after the passing of this Act or until the general regulations to be made as hereinafter provided shall come into operation whichever shall first happen. Provided that in the meantime the existing rights of the Corporation and the traders respectively shall remain unaffected.

43. The owner and occupier of any lands on in through or under which any sewer drain pipe channel or outlet is situate by means whereof any trade refuse flows or is or may be discharged into any sewer or the Corporation as the case may be shall upon application in writing by the other of them requiring the same produce for inspection by the Corporation or by such Production of plans.

A.D. 1915. owner or occupier as the case may be or their or his officers or agents all such plans of such sewer drain pipe channel or outlet as they or he possess and if required shall furnish to them or him at reasonable charges copies of all such plans and shall also give all such information as they or he are able to afford and in case of default shall be liable for every such offence to a penalty not exceeding five pounds and to a further penalty not exceeding forty shillings for every day during which such default shall continue.

Power to make separate or combined systems or schemes.

44. The Corporation may construct or provide any separate sewers or other works for receiving and disposing of any trade refuse as aforesaid or by means of a combined scheme or schemes with all necessary sewers and works may receive and dispose of the trade refuse from two or more trade premises as aforesaid apart or separately from the general sewerage system or disposal works of the Corporation.

Power to combine with other local authorities.

45. The Corporation may combine with the local authority of any other district for the purpose of the exercise and performance of the powers and duties of the Corporation under this Part of this Act and may enter into and carry into effect any agreements for such purpose.

Disposal of sludge or deposit.

46. The Corporation may at the request and cost of any trader or other person for the time being interested in any trade premises remove and dispose of any sludge or deposit or other substance which may have been produced in the course of the treatment of trade refuse upon or in connection with such trade premises.

Corporation may make general regulations.

47.—(1) The Corporation may subject as hereinafter in this Part of this Act mentioned make general regulations which shall be conformed to by the traders who at the passing of this Act discharge or shall thereafter discharge trade refuse into the sewers.

(2) Such general regulations shall provide for (amongst other things) the following operations by and at the cost of the trader:—

(a) The exclusion where practicable from trade refuse discharged from his trade premises into any sewer of all surface and condensing water springs of water and the overflow from reservoirs:

Provided that nothing contained in the provisions of this subsection shall be deemed or construed to

entitle any trader or the Corporation to cause to fall or flow or knowingly permit to fall or flow or to be carried into any river or stream any liquid which is poisonous noxious or polluting within the meaning of the Rivers Pollution Prevention Act 1876 :

(b) The removal (where the same can be effected at a reasonable cost) from trade refuse discharged from his trade premises into any sewer of grease and all or any particular kind of solid or suspended matter or matters in solution :

(c) The regulation (where the same can be effected at a reasonable cost) by the trader of the volume of flow of trade refuse discharged from his trade premises into any sewer so as to ensure an uniform rate of discharge thereof into the sewers during the working hours of each working day (including overtime) for the time being obtaining at such premises.

(3) Such general regulations shall also make satisfactory provision for the inspection of trade effluents and taking of samples by the Corporation.

(4) Such general regulations shall also provide in any case for the payment by the trader to the Corporation either by means of fixed charges per thousand gallons or otherwise in respect of the reception and disposal by the Corporation of his trade refuse (either with or without exclusion removal and regulation as aforesaid or any one or more of such processes) discharged into a sewer and shall prescribe the method to be adopted for ascertaining the quantity and flow of the same.

(5) Such general regulations and charges shall subject as hereinafter in this Part of this Act provided be settled by agreement between the Corporation and a majority of the traders' representatives duly appointed at a general meeting of traders held for that purpose as hereinafter provided or failing such agreement in manner provided by the section of this Act the marginal note whereof is "Reference of questions in dispute." Section 49.

(6) Such general regulations shall be settled with due regard to the circumstances connected with the respective branches of industry or trade in the borough so as to ensure that no unnecessary injury will be inflicted by such regulations on the interests of such industries or trades and shall make all

A.D. 1915. — reasonable distinctions between such respective branches of industry or trade.

(7) After such general regulations shall have been settled in pursuance of the provisions of subsection (5) of this section the Corporation shall serve a copy of the said general regulations on the traders who shall be affected thereby.

Section 42. (8) Such general regulations shall come into operation in the case of traders who are at the time of the settlement thereof under the said subsection (5) discharging trade refuse from their trade premises into the sewers not less than two months after copies thereof have been served upon such traders in pursuance of the last preceding subsection of this section and in the case of other traders one month after receipt by the Corporation of notice under the provisions of the section of this Act of which the marginal note is "Traders may discharge trade refuse into sewers."

(9) A meeting of the traders for the purpose of this section shall be summoned by not less than seven clear days' notice by advertisement in a newspaper circulating in the borough and such meeting shall be convened by the mayor or town clerk and shall be held within six months from the passing of this Act.

Such meeting shall elect traders' representatives not exceeding nine in number and shall act by a majority of the traders present and in the event of such representatives not being appointed at such meeting the said regulations shall be settled by the Corporation alone.

A certificate of the chairman of the meeting at which such representatives are appointed stating the names of the traders' representatives shall be conclusive evidence of their appointment.

(10) A list of traders who shall have been served with any general regulations under this section shall within fourteen days from such service and also a print or copy of any general regulations for the time being in force shall within fourteen days after the same come into operation be filed and kept by the Corporation at the town hall and such list shall be classified in the respective branches of industry or trade carried on within the borough so far as reasonably practicable and shall in each case state the name of the trader the situation of and nature of trade carried on at the trade premises of such trader and whether such trader is interested therein as owner or occupier

and any trader shall be entitled at all reasonable times during office hours at the town hall to inspect any such list or regulations on payment of a fee of one shilling for each inspection and shall be at liberty to take copies thereof at his own expense and to be furnished with copies by the Corporation certified to be correct by an official of the Corporation on payment for the same at the rate of fourpence per folio of seventy-two words and any such certified copy may be received as evidence in all legal proceedings.

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48. Either the Corporation or any trader affected may from time to time serve on the other of them two months' notice of their or his desire to modify vary or rescind any regulations which may be deemed to have become unnecessary or undesirable so far as such trader is concerned and substitute further or other regulations but such modification variation rescission or substitution shall be settled with due regard to all and every the matters mentioned or referred to in the section of this Act the marginal note whereof is "Corporation may make general regulations" and shall be settled in manner provided by the section of this Act the marginal note whereof is "Reference of questions in dispute."

Right to call for modification of regulations.

Section 47.

Section 49.

49. Until Parliament otherwise provides any question arising under this Part of this Act shall be referred to the Local Government Board (for determination otherwise than as arbitrator) and thereupon that Board may make such order in the matter and as to the costs of the reference and of all parties as to the Board may seem equitable and the order so made shall be binding and conclusive on all parties.

Reference of questions in dispute.

50. Any trader who shall discharge any trade refuse into any sewer in the borough except in accordance with the provisions of this Part of this Act and of the regulations for the time being in force thereunder or who shall otherwise infringe such provisions or regulations shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Penalty for default.

51. The production of a written copy of any regulations with respect to the disposal of trade refuse made in pursuance of this Act if authenticated by the seal of the Corporation shall until the contrary is proved be sufficient evidence of the due making settlement and existence of such regulations.

Evidence of regulations.

A.D. 1915.

Power to
enter and
inspect.

52. Any person duly appointed for the purpose by the Corporation and exhibiting his appointment if required so to do may at all reasonable hours of the day or night enter any trade premises for the purpose of ascertaining whether any trade refuse or effluent is being discharged into a sewer the volume of the same the capacity of the drains pipes or sewers to carry the same and the nature of the trade refuse or effluent so being discharged and if such person at any such time be refused admittance into such premises for the purposes aforesaid or be prevented from making such examination the occupier of such premises shall for every such offence be liable to a penalty not exceeding forty shillings.

Reservation
of rights of
riparian
owners.

53. Nothing in this Part of this Act shall prejudice or affect the rights of any riparian owner or justify any infringement of such rights. Provided that if pursuant to this Part of this Act any trade refuse is received into the sewers in contravention of any such riparian rights the remedy for such contravention shall be against the trader and not against the Corporation.

Agreements
for reception
and disposal
of trade
refuse.

54. Subject to the provisions of this Part of this Act the Corporation may enter into agreements with the owners lessees or occupiers of any trade premises within the borough as to the terms and conditions upon which they will receive and dispose of any trade refuse produced on such premises including the construction of all sewers or works whether for preliminary treatment or otherwise required therefor and the repayment of any expenses which they may incur in respect of the construction of sewers or works or on account or in respect of such reception and disposal but any such agreement made after the date of the passing of this Act shall be filed at the town hall with any regulations affecting trade premises in the same branch of industry or trade and be subject to the like rights of inspection as such regulations.

Corporation
may execute
works and
make ad-
vances.

55.—(1) When under this Part of this Act it shall become necessary for any trader to execute works for the purpose of enabling him to comply with any regulations for the time being applicable to one or more trade premises as to preliminary treatment or otherwise for the purpose of this Part of this Act by such trader of the trade refuse proceeding from such trade premises such trader may either execute such works or the

Corporation may if they think fit execute such works at the request and cost of such trader and the Corporation may if they think fit advance to the trader the cost of such works upon such security terms and conditions as may be agreed between such trader and the Corporation.

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(2) If the occupier of any trade premises shall not be the owner thereof or if more than one person shall be interested therein either as owner or occupier or if the said works relate to more than one trade premises the amount payable shall be apportioned between the interests or trade premises (as the case may be) affected in such manner and upon such terms as may be agreed between the parties interested or failing agreement in manner provided by the section of this Act the marginal note whereof is "Reference of questions in dispute."

Section 49.

56. In the assessment of the annual value of trade premises for rating purposes any expenditure under this Part of this Act required to be incurred by the trader to enable such trade premises to fulfil the requirements of any regulations for the time being in force with respect to such premises shall be deemed to be included in the words "other expenses" in the interpretation of the words "net annual value" in the Parochial Assessments Act 1836.

Expenditure in relation to assessment of trade premises.

57. Where at the passing of this Act the trade refuse from any trade premises is already received into the sewers or works of or disposed of by the Corporation the owner lessee or occupier of such premises shall be deemed as at the passing of this Act and for the purposes thereof to have required the Corporation to receive and dispose of such trade refuse subject in all respects to the provisions of this Act.

Existing arrangements for disposal of trade refuse.

58. Nothing in this Part of this Act contained shall entitle any trader to require the Corporation to receive or dispose of—

Prohibiting discharge of certain liquids &c. into sewers.

- (a) Any liquids which prejudicially affect the sewers;
- (b) Any waste steam condensing water heated water or other liquid (such water or other liquid being of a higher temperature than 110 degrees Fahrenheit) which either alone or in combination with the sewage would cause a nuisance or be dangerous or injurious to health;
- (c) Any water grease or matter which by regulations made under the provisions of this Act shall be required to be excluded or removed from trade refuse;

A.D. 1915. or to discharge or continue to discharge the same through any drain communicating with a sewer.

Recovery of money under this Part of Act.

59. Any sum of money other than a penalty due to the Corporation accruing under this Part of this Act may be recovered by the Corporation summarily as a civil debt and the remedy of the Corporation under this enactment shall be in addition to any other remedy of the Corporation for the recovery of any such sum of money.

PART VI.

STREETS BUILDINGS SEWERS DRAINS &C.

Continuation of existing streets to be deemed new streets.

60.—(1) Every continuation of an existing street shall for the purposes of the Public Health Acts of any local Acts for the time being in force within the borough and of this Act and of any byelaws made thereunder respectively and for the time being in force within the borough be deemed to be a new street.

(2) Section 49 (Continuation of streets to be deemed new streets) of the Act of 1884 is hereby repealed.

Intersecting streets.

61.—(1) The Corporation in any case in which it is proposed to lay out a new street may require that such street shall not be laid out without the provision of such intersecting street or streets as will secure intersecting streets at intervals of not more than one hundred and fifty yards each from the other on each side of such new street and of any street of which it forms a continuation. Provided that if on either side of such last-mentioned street there shall already be a greater length from the proposed new street than one hundred and fifty yards without an intersecting street such greater length shall for the purposes of this section be deemed to be one hundred and fifty yards.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purposes of this section "intersecting street" means a side or cross street forming a junction with or crossing another street.

(4) Section 48 (Intersecting streets) of the Act of 1884 is hereby repealed.

62.—(1) When a road footpath or way is about to become a new street within the meaning of the Public Health Acts but the land on only one side of such street has been or is in course of being built on the Corporation may instead of requiring the owner of the land built on or in course of being built on to widen such road footpath or way to a width prescribed by the byelaws in force in the borough require such owner to widen such road footpath or way so as to give a width of not less than one-half of such prescribed width from the old centre line of such road footpath or way to the boundary thereof adjoining such land.

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Widening of roads when only one side is built upon.

(2) Provided that if and when the land on the opposite side of such road footpath or way shall be in course of being built on the owner of such land shall complete the widening of such road footpath or way so as to comply in all respects with the byelaws of the Corporation.

63. The Corporation may agree with the owner of any land in any street to give up land for the purpose of widening opening enlarging or otherwise improving such street in exchange for any part of such street which shall front other land belonging to such owner and shall be behind the general line of such street and which shall in the opinion of the Corporation be no longer required for public use or for approach to any property adjoining the same and for such other consideration (if any) as may be agreed and all public rights of way over any portion of any street so exchanged shall be extinguished.

Exchange of parts of streets disused.

64.—(1) Where any street or road in the borough repairable by the inhabitants at large is in the opinion of the Corporation narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Corporation may from time to time prescribe and define what shall thereafter be the line of frontage on either side of such street or road.

Power to define future line of existing streets.

The line which in any case the Corporation propose so to prescribe and define shall be distinctly marked and shown on a plan to be signed by the town clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Corporation formally prescribe and define the line they shall give notice in writing of the

A.D. 1915. — deposit of the said plan and of the liabilities imposed by this section to every occupier and to every owner interested whose name and address they can ascertain and in cases where such name and address cannot be ascertained by affixing such notice to or on the premises.

No new building erection excavation or obstruction (being of a permanent character) shall be made or placed nearer to the centre of the street or road than such line.

(2) The Corporation may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Corporation sell the land for the time being unbuilt upon lying between any line prescribed by them as aforesaid and the street or road and such land when purchased shall vest in the Corporation as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889.

(3) Whenever in any of the above cases the Corporation shall require the line prescribed by them to be observed and kept they shall make full compensation to the owner of and other persons interested in any land for any loss or damage he or they may sustain respectively in consequence of the line of frontage being set back and kept and the Corporation shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation for all damage and loss or injury (if any) sustained by them to such land or building by reason of the Corporation requiring such line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Corporation under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Building line
in new
streets.

65.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough

distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line").

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(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 (Buildings not to be brought forward) of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the building line shown on the plan to a greater distance from the centre of the street than one-half of the width of the street and six feet in addition the Corporation shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

66. Whenever application shall be made to the Corporation to approve the laying out of or notice shall be given to the Corporation of intention to lay out a new street (including in that expression the formation of a new street or the widening of an existing street or the widening or adaptation of a road

Develop-
ment scheme
may be re-
quired in
connection
with new
streets.

A.D. 1915. — footpath or way so as to form a new street) the Corporation may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Corporation with plans and particulars showing the general scheme for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans and particulars required as aforesaid shall be so furnished.

Appeal to
petty ses-
sional court.

67.—(1) Any person deeming himself aggrieved by any requirement of or by the Corporation under either of the last two preceding sections of this Act may within fourteen days from the date of such requirement appeal to a petty sessional court and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(2) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the petty sessional court may direct.

Power to
grant
licences for
bridges over
streets.

68.—(1) The Corporation may grant to the owner or with the consent of the owner to the lessee or occupier of any premises abutting upon any street repairable by the inhabitants at large a licence to construct and use a way (exclusive or otherwise) for himself his servants and agents at all times with or without trucks by means of a bridge over such street for such term as shall be co-extensive with or less than the interest of such owner lessee or occupier in the premises in respect of which such licence shall be given on such terms or at such rent and with under and subject to such covenants conditions and agreements as to the Corporation may seem fit.

(2) Provided that any licence given under this section shall not in any way interfere with the convenience of persons using such street or affect the rights of the owners of the property adjoining and up to the line of the street.

(3) Provided also that in the event of the construction of any such bridge involving the alteration of a telegraphic line of the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and any such bridge shall for the purposes of the placing

or maintenance of overground telegraphic lines under the powers conferred by the Telegraph Acts 1863 to 1913 be deemed part of the street or road which it crosses. A.D. 1915. —

(4) If any person shall construct a bridge over any such street without such licence or shall not construct or use the same in accordance with the terms and conditions of the licence he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

69.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or with the construction or working of tramways or with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage. Lopping of overhanging trees and shrubs.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt.

(3) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section.

70.—(1) The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of any such land from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully. For preventing soil and sand from being washed into streets.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

A.D. 1915.

(3) For the purpose of this section "public street" means a street repairable by the inhabitants at large and "private street" means a street not so repairable.

Street bins.

71. The Corporation may provide and maintain in the streets of the borough bins for sand and gravel or other materials and orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine.

Byelaws as to admission of light to buildings.

72. Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 shall be extended so as to empower the Corporation to make byelaws for securing adequate lighting to staircases passages and lobbies in new buildings and in cases where structural alterations are proposed to be made to staircases passages and lobbies of existing buildings.

Byelaws as to materials and construction of buildings.

73. The Corporation may make byelaws with respect to the following matters (namely):—

- (1) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act:
- (2) The uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united:
- (3) Woodwork in external walls of buildings:
- (4) The testing of drains of new buildings.

Sanitary conveniences for workmen engaged on buildings.

74.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the borough shall if practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such work or operation sufficient water or other closets and urinals.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

75.—(1) Every new building exceeding thirty-five feet in height used or intended to be used as a tavern hotel restaurant hospital boarding-house common lodging-house or school shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein or resorting thereto as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Corporation have issued a certificate that the provisions of this section have been complied with in relation thereto and such means of escape shall be maintained in good and efficient condition and free from obstruction.

A.D. 1915.

Means of escape from buildings in case of fire.

(2) Nothing in this section contained shall be deemed to interfere with the operation of section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or of any Act amending the same.

(3) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

76. When the plans of any new mill factory or building are submitted to the Corporation for approval the Corporation may require that no firing place shall be constructed so as to open directly on to any street or road.

Firing places in mills not to open on to streets.

77. Section 23 (Extension of 38 & 39 Vict. c. 55. s. 157) of the Public Health Acts Amendment Act 1890 in its application to the borough shall have effect as if the words “and floor area” had been inserted therein after the word “height” in subsection (1) of that section.

Area of habitable rooms.

78. The owner of any dwelling-house the erection of which is commenced after the passing of this Act and which is not provided with sufficient and suitable food storage accommodation who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Food storage accommodation.

79. Every person who wilfully turns or permits to enter into any sewer of the Corporation or any drain communicating therewith any petrol oil or other like deleterious substances shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

Prohibiting entry of petrol &c. into sewers.

A.D. 1915

Power to
require
specially
large sewer
in new street.

80. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

Power to lay
drains in
private
streets.

81. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation in case of dispute to be ascertained by and recovered before a court of summary jurisdiction.

Re-construction of
drains.

82.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws or regulations relating to the drainage of existing buildings.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Notice of
intention to
repair drains.

83.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Corporation without giving to the Corporation or to the surveyor twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or to any officer of the Corporation authorised in writing by the town clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

84. The powers given by section 19 (Extension of 38 & 39 Vict. c. 55. s. 41) of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

A.D. 1915.
Amendment
of section 19
of Public
Health Acts
Amendment
Act 1890.

85. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

As to houses
without
proper water
supply.

86. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Penalty on
occupiers
refusing
execution of
Act.

87. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament.

General
saving as to
railway
companies.

PART VII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

88. If any person not less than sixteen years of age while suffering from any infectious disease wilfully exposes himself without proper precautions against spreading the disease in any street public place shop inn or any public conveyance or being in charge of any person so suffering wilfully exposes such sufferer he shall be liable to a penalty not exceeding five pounds.

For prevent-
ing spread of
infectious
disease.

A.D. 1915.

Power to
close Sunday
schools to
prevent
spread of
disease.

89.—(1) If the Corporation or a committee of the council acting on the advice of the medical officer with the view of preventing the spread of infectious disease in the borough require the closing of any Sunday school or any department thereof or the exclusion of certain children for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding one pound.

To prevent
spread of
infectious
disease
amongst
children in
Sunday
schools &c.

90.—(1) No person being the parent or having the care or charge of a child who is or has been attending any school which has been closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of infectious disease shall permit such child to attend any Sunday school in the borough without having procured from the medical officer or the school medical officer a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school without undue risk of communicating disease to others.

(2) Any person who shall offend against this section shall for every such offence be liable to a penalty not exceeding forty shillings.

(3) In this section the expression "school medical officer" means any medical practitioner appointed under section 13 of the Education (Administrative Provisions) Act 1907 to undertake the medical inspection of children attending a public elementary school in the borough.

Compensa-
tion to per-
sons ceasing
employment.

91. If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Extended
meaning of
"infectious
disease" for
certain pur-
poses.

92. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes measles german measles whooping cough and chicken-pox.

Information
to be fur-
nished as to
infectious
disease.

93.—(1) The occupier of any building in the borough which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during

the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease. A.D. 1915.

(2) Any occupier knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

94. Any person who being in charge of the body of any person who has died from any infectious disease shall permit or allow any other person unnecessarily to come into contact with such body shall be liable to a penalty not exceeding five pounds. For preventing contact with body of person dying of infectious disease.

95.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a medical man to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section. Removal of person suffering from pulmonary tuberculosis to hospital.

(2) The medical officer shall give to the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion during the period of detention make payments for or towards the effective support and maintenance of the relatives of or those actually

A.D. 1915. — dependent upon any person so suffering and removed to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the amount necessary for such effective support and maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependents.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order of the Local Government Board which order the Local Government Board are hereby empowered to make.

Disinfection
in case of
tuberculosis.

96.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any boat tent shed or similar structure used for human habitation) or any part would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or such part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of

the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice. A.D. 1915.

If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(b) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the town clerk and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(c) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and if the offence is a continuing one to a daily penalty not exceeding twenty shillings.

(2)—(a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owner free of charge.

A.D. 1915.

(3) If any person sustains any damage by reason of the exercise by the Corporation of any of the powers of this section in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in case of dispute may be settled by a court of summary jurisdiction.

No place
used for
storage &c.
of human
food to be
used as a
sleeping
place.

97.—(1) No room shop or other part of a building in which any food is sold or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

No penalty shall be imposed for an offence against this section if in the opinion of the court the occupation of such room shop or other part of a building in contravention of this section has not caused risk of infection or of contamination of food.

(3) The Corporation or any of their officers shall have the like right of entry upon any such room shop or other part of a building as they would have had under section 102 (Power of entry of local authority) of the Public Health Act 1875 if there had been a nuisance arising in respect of any business carried on therein.

(4) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

For regu-
lating manu-
facture and
sale of ice
cream &c.

98.—(1) Any person being a manufacturer vendor or merchant of or dealer in ice cream or other similar commodity who within the borough—

(a) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to

health or in which there is an inlet or opening to a drain ; or A.D. 1915.

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer—

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4)—(a) The medical officer and the inspector of nuisances and any other officer who is duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer vendor or merchant of or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(b) Any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

99. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or

Blowing or inflating of carcasses.

A.D. 1915. brought into the borough and any person offending against this enactment or exposing or depositing for sale within the borough a carcase which is blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

Extension of powers of veterinary inspector.

100. The veterinary inspector of the Corporation may exercise the powers of section 116 (Power of medical officer of health to inspect meat &c.) of the Public Health Act 1875 in the same manner as the medical officer or the inspector of nuisances and the Public Health Acts shall apply within the borough as if such veterinary inspector were mentioned in the said section in addition to the medical officer and the inspector of nuisances.

Establishment &c. of offensive trades.

101. For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the consent in writing of the Corporation but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

Receptacles for dust or filth from shaking or cleansing rags.

102.—(1) Any person who carries on the shaking or cleansing of rags by way of or in connection with his trade or business shall provide and maintain in good working order suitable appliances and receptacles for collecting the dust or filth from such rags and preventing the escape of such dust or filth into the air of the room in which the process is carried on or into the open air.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Rag and bone dealers not to sell food.

103.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the business of rag and bone merchant or any

person acting on behalf of any such person as aforesaid to sell or distribute within the borough any articles of food from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from any shop or premises used for or in connection with the business of rag and bone merchants. A.D. 1915.

(2) Every person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

104.—(1) If the medical officer or the inspector of nuisances has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin. Houses infested with vermin to be cleansed.

(2) Where on the certificate of the medical officer or the inspector of nuisances it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable on summary conviction to a fine not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as hereinafter provided) be recoverable from the person making the default.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice

A.D. 1915. — given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

Cleansing of
verminous
persons.

105.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothes of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is a child) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the like case and on the like certificate may cause any such person who or (where the person is a child) whose parent or guardian does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where two justices on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the conditions of any order satisfied without charge to the person removed or to the parent or guardian of that person.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) If any person at the request of the Corporation or under an order of such justices shall cease his employment in order to comply with such order the Corporation may and in case of an order of the justices shall make compensation to him for any loss he may suffer thereby.

(4) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human

habitation or any boat lying in any river dock canal or other water within the borough and used for the like purpose. A.D. 1915.

106.--(1) If the medical officer has reason to believe that any dwelling-house or separate tenement in the borough comprising any number of living rooms and bedrooms not being more than four in all is used for the accommodation of more persons than having regard to the health and well-being of the occupants should be accommodated therein the medical officer or inspector of nuisances may at any time between the hours of nine o'clock in the morning and nine o'clock in the evening enter such dwelling-house or tenement and may measure in cubic feet the space (exclusive of lobbies closets and presses and of recesses not exceeding four feet in depth and not having a separate window therein and not perfectly clear from floor to ceiling and from wall to wall and exclusive also of recesses in which there is any fixture whatever) contained in each such room and may affix in some prominent position within the dwelling-house or tenement a plate or a ticket on which shall be marked the number of such cubic feet and the number of persons exceeding the age of twelve years who without a breach of the provision of subsection (2) of this section may sleep in each room and any person who obliterates defaces removes or alters such marking or ticket shall be liable to a penalty not exceeding ten shillings:

Overcrowd-
ing of small
houses.

Provided that if entry to any such dwelling-house under the provisions of this section is refused by the person having the custody of such dwelling-house or any person acting in his behalf any justice may upon the application of the Corporation or of the medical officer or inspector of nuisances grant a warrant to the medical officer or inspector of nuisances to enter such dwelling-house during the hours aforesaid for the purposes of this section and any person who obstructs the medical officer or inspector of nuisances in the performance of his duty under such warrant and this section shall be liable to a penalty not exceeding five pounds.

(2) If any room in any such dwelling-house or tenement is used for the purposes of sleeping in by a greater number of persons than in the proportion of one person of the age of twelve years or upwards for every four hundred cubic feet of space or of one person of an age of less than twelve years for every two hundred cubic feet of space ascertained to be contained therein by measurement as hereinbefore provided or by a

A.D. 1915. — greater number of persons than is marked on the plate or ticket affixed therein in pursuance of subsection (1) of this section every person being an occupier of such dwelling-house and so using it or suffering it to be used shall be liable to a penalty not exceeding twenty shillings for every day or part of a day during which it is used or suffered to be used and the medical officer or an inspector of nuisances may from time to time enter such dwelling-house if he have reason to believe that the provisions of this section are being contravened.

Regulation
dustbins.

107.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Corporation.

(2) Any owner or occupier who fails within fourteen days after notice given to him under this section to comply with the requirements of the Corporation shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(3) Provided that this section shall not apply to any ashpits or any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable size and in proper order and condition.

Public notice
to be given
of provisions
of this Part
of Act.

108.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VIII.

COMMON LODGING-HOUSES.

Registration
of common
lodging-
houses.

109.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house shall operate for one year only and application for the renewal of

such registration shall be made to the Corporation on or previous A.D. 1915.
to the thirty-first day of December in every year.

(2) Any person aggrieved by a refusal to renew the registration of a common lodging-house may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as they think fit and to award costs.

(3) Every person who after the thirty-first day of December nineteen hundred and fifteen shall keep a common lodging-house without the registration of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) Notice of the provisions of this section shall be served upon the keeper of every common lodging-house within the borough either personally or by leaving the same at or sending the same to the common lodging-house.

(5) A copy of a notice endorsed with a certificate purporting to be signed by the town clerk that such notice has been served in accordance with the requirements of the last preceding subsection shall be sufficient evidence that the provisions of such subsection have been complied with.

PART IX.

FINANCIAL PROVISIONS.

110.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column thereof (namely):—

Power to borrow.

1.	2.	3.
Purpose.	Amount.	Period.
(a) For the construction of the tramway authorised by this Act and other purposes of the tramway undertaking of the Corporation.	£ 1,190	Thirty years from the date or dates of borrowing.

A.D. 1915.

1.	2.	3.
Purpose.	Amount.	Period.
(b) For the provision of the electrical equipment and other works necessary for working the tramway authorised by this Act.	£ 200	Twenty years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part II. (Tramway provisions) of this Act and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act (other than purposes of that Part) or for any of the purposes of the water undertaking of the Corporation including any contributions by the Corporation to the capital expenditure of the Dewsbury and Heckmondwike Waterworks Board.

(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as “the prescribed period”) as may be prescribed by the board with whose consent it is borrowed.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge—

(a) As regards money borrowed for the purposes mentioned in subsection (1) of this section the revenue of the tramway undertaking of the Corporation and the borough fund and borough rate :

(b) As regards money borrowed with the consent of the Board of Trade or of the Local Government Board such revenue fund or rate as may be prescribed by the Board with whose consent the money is borrowed.

(4) The provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is “Power to use one form of mortgage for all purposes.”

Section 122.

Restriction
on borrow-
ing.

111. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act borrow any money (other than money required for paying the costs charges and expenses

of this Act as hereinafter defined) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. A.D. 1915.

112. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by the creation and issue of stock in pursuance of the Act of 1884 as amended by subsequent enactments or by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act. Mode of raising money.

113. Subject to the provisions of the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" the following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):— Provisions of Public Health Act 1875 as to mortgages to apply.
Section 122.

Section 236 (Form of mortgage);

Section 237 (Register of mortgages);

Section 238 (Transfer of mortgages).

114. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments or by half-yearly payments to the sinking fund within six months from the date of borrowing. Mode of payment off of money borrowed.

115.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such fund shall be formed and maintained either— Sinking fund.

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so

A.D. 1915.

formed is hereinafter called a "non-accumulating sinking fund"; or

- (b) By payment to the fund throughout the prescribed period of such equal yearly or half-yearly sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which

A.D. 1915. — it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Protection of lender from necessity of inquiry.

116. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Appointment of receiver.

117.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Application of money borrowed.

118. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Audit of accounts.

119. The provisions of the Municipal Corporations Act 1882 relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under that Act shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

Power to re-borrow.

120.—(1) The Corporation shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section. A.D. 1915.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following provisions are hereby repealed but without prejudice to anything done or suffered to be done thereunder respectively (namely):—

Section 43 (Power to re-borrow) of the Act of 1873 (so far as it relates to the Corporation);

Article VII. of the Dewsbury Order 1898; and

Section 34 (Power to re-borrow) of the Ravensthorpe Urban District Council Act 1908.

121. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of moneys borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities. Power to invest all sinking funds in statutory securities.

122.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

A.D. 1915.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest

therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect. A.D. 1915.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

123.—(1) The Corporation before the registration in the books of the Corporation of any transfer or transmission of any mortgage or other security (except stock and except securities issued under the Local Loans Act 1875) may require evidence of the title of any person claiming a right to such transfer or transmission to be registered in the books of the Corporation. Evidence of title.

(2) Such evidence shall be a statutory declaration of one or more competent persons or such other evidence as the Corporation may require.

124. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except stock and except securities issued under the Local Loans Act 1875) except upon the production to and Evidence of transfer or transmission of securities.

A.D. 1915. — temporary deposit with the treasurer of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in the case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Application
of excess
income of
sinking
funds.

125. If and so often as the income of any accumulating sinking fund formed by the Corporation for the repayment of any money raised in pursuance of a statutory borrowing power other than money raised by the issue of stock is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

Power to use
sinking fund
instead of
borrowing.

126.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

(a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) Moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

Section 122.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund :

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund : A.D. 1915.

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

127.—(1) The borough accountant shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to the sinking fund in respect of any of the moneys raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may be prescribed by the Board and if required by the Board verified by a statutory declaration of such accountant showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the

Returns to
Local Go-
vernment
Board as to
sinking fund.

A.D. 1915. sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year together with such further information (if any) as the Board shall require and in the event of his failing to make such return the said accountant shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for the sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.

(3) The following provisions are hereby repealed but without prejudice to anything done or suffered to be done thereunder (namely):—

(a) Section 58 (Annual return to Local Government Board with respect to sinking fund) of the Act of 1873 (so far as it relates to the Corporation);

(b) Subsection (7) of section 39 (Power to Ravensthorpe and Thornhill Local Boards to borrow) of the London and North Western Railway Act 1888;

(c) Subsection (11) of section 17 (Power to corporation of Dewsbury and Thornhill Local Board to borrow) of the Lancashire and Yorkshire Railway Act 1888

(d) Article VIII. of the Dewsbury Order 1898;

(e) Subsection (7) of the provisions with respect to the A.D. 1915.
Thornhill Urban District Council contained in section 9 (As to bridge over River Calder and connected works) of the Midland Railway Act 1900;

(f) Section 65 (Return respecting sinking fund to Local Government Board) of the Soothill Nether Urban District Tramways Act 1904;

(g) Section 33 (Return to Local Government Board as to repayment of debt) of the Ravensthorpe Urban District Council Act 1908; and

(h) Article XVIII. (Return as to provision for repayment of debt) of the Dewsbury Order 1912.

(4) Article II. (4) of the Order relating to the borough which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1886 shall be amended by the substitution therein of the borough accountant for the town clerk.

128. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation. Receipt in case of persons not sui juris.

129.—(1) The Corporation shall apply all money received by them— Revenues and deficiencies in respect of water and markets undertakings.

(a) On account of the revenue of their water undertaking; or

(b) On account of the revenue of their markets undertaking;

in the manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking in respect of which it is received:

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of such undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of such undertaking:

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of such undertaking:

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income

A.D. 1915.
—

thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts in the case of the water undertaking to twenty thousand pounds and in the case of the markets undertaking to five thousand pounds which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of such undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the revenue of either of the said undertakings (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the water undertaking or in the revenue of the markets undertaking shall be made good out of the district fund and the next general district rate to be made by the Corporation shall be increased so far as may be necessary to raise money to recoup to the district fund the amount so defrayed out of that fund.

General
district rate
may be
assessed as
borough rate.

130.—(1) The Corporation may if they think fit in lieu of themselves making assessing and levying any general district rate order such rate to be made assessed and levied in the same manner as a borough rate and may enforce the payment thereof from the overseers in the same manner as in the case of the borough rate and if any such order be made by the Corporation the general district rate shall be made assessed and levied by the overseers in the same manner and under the same provisions (including the provisions as to appeals) as in the case of the poor rate but subject to the exemptions (partial or

otherwise) for the time being applicable to such general district rate in respect of any property in the borough and such rate may be assessed and levied either separately or together with the poor rate assessed and levied in respect of the hereditaments rateable to such rate: A.D. 1915.

Provided that the demand note served upon any railway company for any such rate shall show distinctly on the face of it the respective assessments as well as the actual rates proposed in each case to be levied and nothing to be done under this section shall operate to deprive any railway company of the benefit of the provisions of section 211 (Assessment &c. of general district rate) of the Public Health Act 1875 or any other enactment for the time being in force with respect to the assessment of any land used as a railway constructed under the powers of any Act of Parliament.

(2) In the event of the Corporation making any order in pursuance of this section—

(a) Any other rate for the time being leviable by the Corporation and any water rates rents or charges (including meter rents) payable to the Corporation may be included with the poor rate (but distinguished therefrom) in any book or books of assessments and in one demand note. The demand note shall be in such form as the Local Government Board may approve:

(b) The overseers shall recover and enforce the poor rate in the same manner as the general district rate is recoverable and enforceable under the Public Health Act 1875 and the provisions of section 2 (In default of distress for non-payment of rates justices may issue warrant of commitment) of the Distress for Rates Act 1849 with respect to the recovery and enforcement of the poor rate shall cease to apply. Provided that any provisions limiting the period within which proceedings must be commenced for the recovery of the general district rate in a court of summary jurisdiction shall not apply to the poor rate:

(c) Within the first financial year after the making of such an order the Corporation may notwithstanding anything to the contrary contained in the Waterworks Clauses Act 1847 alter and adjust the dates for the payment and recovery of water rates to correspond

A.D. 1915.

as nearly as practicable with the dates and periods for the levying and collection of the poor rate and for the purpose of bringing into operation such adjustment and thereafter it shall be lawful for the Corporation to recover water rates for one or more quarters of any such financial year at the same time as the overseers are entitled to recover the poor rate but so that such water rates shall not in any case be recoverable in advance for more than one quarter of any year:

- (d) The expenses of the overseers in connection with the assessment levying and collection of the general district rate shall be paid out of the district fund.

Owner may
be rated
instead of
occupier in
certain cases.
Section 130.

131. On an order being made by the Corporation in pursuance of the section of this Act whereof the marginal note is "General district rate may be assessed as borough rate" the following provisions shall apply and have effect (that is to say):—

- (1) It shall be lawful if the Corporation think fit for any owner or owners of rateable property of which the full net annual value does not exceed the sum of eight pounds or which is let to weekly or monthly tenants or in separate apartments or for which the rent becomes payable or is collected at any shorter period than quarterly to be rated instead of the occupier or occupiers of such property and every such owner so rated shall pay such rates instead of the occupier. But in every such case such owner shall be entitled to any allowance which the Corporation think reasonable not exceeding ten pounds per centum of such net annual value. Provided that—

(a) The percentage of any such allowance shall be alike in all cases where the circumstances are similar;

(b) Where the owner is willing to enter into an agreement to pay the rates whether the premises are occupied or not he shall be entitled to a further allowance not exceeding five pounds per centum of the said net annual value;

(c) The owner shall not be entitled to any allowance as provided by this section where the amounts due in respect of rates are not paid within three

months after the rate shall have been made or within two months after the same shall have been demanded whichever shall be the later: A.D. 1915.

(2) When the Corporation exercise the option under this section of causing the owner to be rated instead of the occupier they shall forthwith give notice thereof to the overseers and the overseers shall rate the owner accordingly and the provisions of this section shall apply within the borough in substitution for the provisions of sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 and subject to and with such substitution as aforesaid the provisions of such Act as amended by the Local Government Act 1894 shall remain in operation and shall extend and apply to the general district rate (in substitution for the corresponding provisions of section 211 of the Public Health Act 1875) in like manner as to the poor rate:

(3) Unless and until the Corporation exercise the option given to them by this section the provisions of sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869 as amended by the Local Government Act 1894 shall remain in operation and the provisions of such first-named Act as amended as aforesaid shall extend and apply to the general district rate (in substitution for the corresponding provisions of section 211 of the Public Health Act 1875) in like manner as to the poor rate.

132.—(1) In the event of the Corporation making an order in pursuance of the section of this Act the marginal note whereof is "General district rate may be assessed as borough rate" the accounts of the overseers and collectors of poor and other rates relating to the general district rate shall be submitted to and audited by the district auditor in the manner provided by section 37 (Rates made by overseers not now audited made subject to the audit of district auditor) of the Divided Parishes and Poor Law Amendment Act 1876 and that rate shall be deemed to be a rate within the meaning of that section. Audit of rate accounts.
Section 130.

(2) The overseers shall prepare and submit to the district auditor at every audit of their accounts a financial statement in duplicate in the form and containing the particulars from time

A.D. 1915. — to time prescribed by the Local Government Board in respect of the general district rate One of such duplicates shall have the stamp duty chargeable according to the scale contained in the District Auditors Act 1879 affixed thereon and calculated according to the total of the sums paid to the Corporation during the period to which the statement relates and the provisions of the District Auditors Act 1879 as to the duties of the auditor with reference to such duplicates shall apply as if the said duplicates were prepared and submitted under that Act.

(3) The Corporation shall repay to the said overseers the amount of any stamp duty which may be paid by them upon any financial statement pursuant to the provisions of this Act.

(4) The provisions of section 5 (Regulations as to audit) and section 6 (Stamp duties under Inland Revenue) of the District Auditors Act 1879 shall apply to the accounts of the overseers and collectors and to the stamp duty on such financial statements as aforesaid and any overseer who shall fail to comply with the provisions of this Act with respect to a financial statement shall be liable to the penalty provided in section 7 (Failure to submit financial statement) of the last-mentioned Act.

Power to
create acci-
dent fund.

133.—(1) The Corporation may if they think fit form a fund to be called "the accident fund" to provide for meeting claims upon them under the common law the Employers Liability Act 1880 the Workmen's Compensation Act 1906 or any Act or Acts for the time being amending or extending those Acts or otherwise in respect of any accident occurring in the execution of any of their powers and such fund shall be formed by annually appropriating thereto such sums out of any of their revenues which are properly chargeable with such sums as they may from time to time deem expedient and such sums shall be invested at compound interest in or upon statutory securities and accumulated until the same shall amount to the sum of ten thousand pounds:

Provided that the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section notwithstanding that the same shall not then have reached or shall have been reduced below the said sum of ten thousand pounds and if the said fund be reduced at any time it may in manner provided by this section be restored to the said amount.

(2) If at any time it should be necessary for making any payment for any compensation to which this section relates to borrow money the Corporation may with the sanction of the Local Government Board borrow the necessary sum on the security of the revenues of the Corporation. A.D. 1915.

PART X.

MISCELLANEOUS PROVISIONS.

134. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required or expedient for the working of any of their tramways by mechanical power or for lighting any street in the borough either by gas or electricity: Attachment of brackets to buildings.

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid:
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):
- (3) The owner may require the Corporation to remove temporarily the attachments where necessary during any reconstruction or repair of the building.

A.D. 1915.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

Dwelling-houses for persons in Corporation's employment and other buildings.

135. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their tramway and gas undertakings and other buildings for those purposes and may erect maintain and let dwelling-houses for such persons and other buildings for the purposes of the said undertakings upon any lands for the time being belonging to the Corporation for those purposes and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

Provision of entertainments and letting of town hall or other buildings.

136.—(1) The Corporation may arrange for the provision or carrying on of suitable concerts and exhibitions and for the sale of programmes and refreshments in the town hall or in any public buildings halls or rooms belonging to them and may make such reasonable charges as they may think fit for admission thereto and the Corporation may let any such premises as aforesaid for the purposes of concerts entertainments exhibitions performances or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit or upon the like terms and conditions they may lease any such premises for any term not exceeding twenty-one years :

Provided that any letting other than for a period of not more than one month under this section of any building for the purpose of an entertainment shall be by tender and the Corporation shall secure the best rent reasonably obtainable.

(2) The Corporation may make byelaws for securing good and orderly conduct during any concerts entertainments exhibitions performances or amusements provided or carried on in pursuance of the provisions of this section.

(3) All sums received in respect of any hall building offices or room under this section or under section 21 (Power to let rooms in town hall) of the Act of 1891 shall after payment thereof of the expenses incurred by the Corporation under those sections be paid into the fund out of which the expenses incurred by the Corporation for the purposes of such hall building offices or room are defrayed.

137. The Corporation may from the first day of October to the first day of May close and cover over any swimming bath belonging to them and utilise or from time to time let the same for meetings or entertainments of any description or for any other purposes free from any restriction contained in the Baths and Washhouses Acts 1846 to 1899 or any Act amending the same.

A.D. 1915.

Use of swimming baths during winter.

138. The Corporation may close to the public and may reserve the exclusive use of any swimming bath or open bathing place belonging to them and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises or for any other entertainments or exhibitions or for meetings and may demand and take or authorise to be demanded and taken at the door or entrance of such swimming bath or open bathing place such sums for the exclusive use of such bath or place or for admission of persons thereto as they may think fit:

Use of swimming baths for exhibitions &c.

Provided that (subject to the provisions of the section of this Act of which the marginal note is "Use of swimming baths during winter") no such swimming bath shall be closed under the powers of this section before six o'clock in the evening for more than six days or for more than three consecutive days at any one time in any year but after six o'clock in the evening such bath may be closed on such days as the Corporation may in their absolute discretion determine.

Section 137.

139. The Corporation may erect or fix street fire alarms in such positions in any street road or public place within the borough as they think fit Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Fire alarms.

140. The Corporation may within the borough put up continue remove or discontinue drinking fountains and cattle troughs with proper conveniences for the gratuitous supply of water for drinking and for watering of cattle and horses at such fountains or troughs respectively.

Public drinking fountains.

141. An occasional licence for a public vehicle may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence

Power to grant occasional licences.

A.D. 1915.

Ejection of
steam and
waste gas to
annoyance
of public.

142. All steam or waste gas ejected from any fixed engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public but nothing in this section shall apply to steam ejected from any locomotive boiler or engine now or hereafter belonging to any railway company. Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

For protec-
tion of rail-
way com-
panies.

143. The following provisions for the protection of the railway companies shall except so far as may be agreed between the Corporation and a railway company be observed and have effect (that is to say):—

(1) In the exercise of the powers conferred upon the Corporation by the sections of this Act hereinafter mentioned the Corporation shall not interfere with or render less convenient the access to or exit from any station or depôt belonging to a railway company:

The sections of this Act hereinbefore referred to have the following marginal notes:—

Section 12.

Corporation may appoint stopping and starting places;

Section 15.

Shelters or waiting-rooms;

Section 71.

Street bins;

Section 139.

Fire alarms;

Section 140.

Public drinking fountains:

(2) The provisions contained in Article XIX. (For protection of Lancashire and Yorkshire and Great Northern Railway Companies) of the Dewsbury Order 1912 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1912 shall extend and apply to the exercise of the powers contained in the section of this Act whereof the marginal note is "Power to lay down pipes for ancillary purposes" as if it were with all necessary modifications re-enacted in this Act and extended to protect each of the railway companies:

Section 25.

(3) Nothing in the section of this Act whereof the marginal note is "Attachment of brackets to buildings" shall

Section 134.

authorise the Corporation to attach any brackets wires or apparatus to the structure of any railway bridge or viaduct forming part of the railway of a railway company without the previous consent in writing of such company : .

A.D. 1915.

- (4) In the case of any building of which a railway company are the owners any question which pursuant to the last-mentioned section is to be determined by a petty sessional court shall in lieu thereof be referred to and determined by an engineer to be agreed on by the parties to such question or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference :

Any engineer to whom any such question is referred shall (in addition to any other powers vested in him under the Arbitration Act 1889) have all the like powers as are by the said section conferred upon a petty sessional court and for the purposes of the said section the award of such engineer shall be deemed to be equivalent to an order of a petty sessional court :

- (5) Nothing in the sections of this Act hereinafter mentioned shall apply to any work constructed or to be constructed by a railway company as a part of or for the purposes of their railway under any statutory powers or to any lands held or acquired or which may hereafter be held or acquired by a railway company and used for the purposes (other than for a dwelling-house) of their railway with the authority of Parliament :

The sections of this Act hereinbefore referred to have the following marginal notes :—

Continuation of existing streets to be deemed new streets ;	Section 60.
Intersecting streets ;	Section 61.
Widening of roads when only one side is built upon ;	Section 62.
Power to define future line of existing streets ;	Section 64.
Building line in new streets ;	Section 65.

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A.D. 1915.	Development scheme may be required in connection
Section 66.	with new streets ;
Section 82.	Re-construction of drains ;
Section 83.	Notice of intention to repair drains.

Power to enter premises. **144.** The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of Part VI. (Streets buildings sewers drains &c.) and Part VII. (Infectious disease and sanitary provisions) of this Act as if those purposes had been mentioned in the said section 102.

As to breach of conditions of consent of Corporation. **145.** Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Consent of Corporation to be in writing. **146.** All consents given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk.

Confirmation of byelaws. **147.** The provisions of the following sections of the Public Health Act 1875 (namely) :—

Section 182 (Authentication and alteration of byelaws) ;

Section 183 (Power to impose penalties on breach of byelaws) ;

Section 184 (Confirmation of byelaws) ; and

Section 185 (Byelaws to be printed &c.) ;

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act except byelaws made under Part II. (Tramway provisions).

As to health committee. **148.**—(1) All or any of the provisions contained in Part VI. (Streets buildings sewers drains &c.) and Part VII. (Infectious disease and sanitary provisions) of this Act may if the council think fit be carried into execution by a committee of the council formed in accordance with and subject to the provisions of section 200 (Power of urban authority to appoint committees) of the Public Health Act 1875.

(2) Subject to any regulations imposed by the council the acts of the committee appointed in pursuance of the said section 200 whether such acts relate to the purposes of the Public Health Acts or of this Act shall not require to be submitted to the council for their approval.

A.D. 1915.

149. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of appointments authority &c.

150. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing (not being undertakers under any Act or Order made under the Tramways Act 1870 the Light Railways Act 1896 or the Electric Lighting Acts 1882 to 1909) the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

In executing works for owner Corporation liable for negligence only.

151. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts

Apportionment of expenses in case of joint owners.

A.D. 1915. or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Recovery of penalties &c.

152. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

153. Proceedings for the recovery of any demand made under the authority of this Act or under the authority of the Act of 1884 or the Act of 1891 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Summons or warrant may contain several sums.

154.—(1) Where the payment of more than one sum by any person is due under this Act or under the Act of 1884 any summons or warrant issued for the purposes of such Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

(2) Section 289 (Several sums in one summons) of the Act of 1884 is hereby repealed.

Informations by whom to be laid.

155. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Penalties to be paid over to treasurer.

156. All penalties recovered on the prosecution of the Corporation or any officer of the Corporation on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer and be by him carried to the credit of the borough fund or to such other fund as the Corporation shall direct.

As to appeal.

157. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation

or of or by any officer of the Corporation under the provisions of Part VI. (Streets buildings sewers drains &c.) or of Part VII. (Infectious disease and sanitary provisions) of this Act or by any conviction or order by a court of summary jurisdiction under any of those provisions may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

A.D. 1915.

158. The following provisions of the Act of 1884 and the Act of 1891 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (namely):—

Application
of provisions
of Acts of
1884 and
1891.

The Act of 1884—

- Section 217 (Corporation not to regard trusts);
- Section 282 (Damages and charges in case of dispute to be settled by justices);
- Section 283 (Compensation how to be determined);
- Section 284 (Compensation may be in land &c.);
- Section 296 (Saving for indictments &c.);
- Section 299 (Persons acting in execution of Act not to be personally liable);
- Section 300 (Powers of Act cumulative);
- Section 301 (Saving rights of Corporation):

The Act of 1891—

- Section 31 (Certain regulations of Public Health Acts as to borrowing not to apply);
- Section 37 (Notices);
- Section 38 (Local inquiries and costs of inspectors);
- Section 40 (Expenses of execution of Act).

159. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of any local Act for the time being in force in the borough by reason of his being liable to any rate.

Judges not
disqualified.

160. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Crown
rights.

A.D. 1915.

Costs of Act.

161. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or borough rate and out of the district fund or general district rate in such proportion as the Corporation may determine or out of money to be borrowed under the powers of this Act for the purpose.

The SCHEDULES referred to in the foregoing Act.

A.D. 1915.

THE FIRST SCHEDULE

Referred to in Section 10.

AGREEMENT WITH YORKSHIRE (WOOLLEN DISTRICT) ELECTRIC
TRAMWAYS LIMITED.

MEMORANDUM OF AGREEMENT made the twentieth day of April nineteen hundred and fifteen between the MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF DEWSBURY (hereinafter respectively referred to as "the Corporation" and "the borough") of the one part and the YORKSHIRE (WOOLLEN DISTRICT) ELECTRIC TRAMWAYS LIMITED (hereinafter referred to as "the company") of the other part.

WHEREAS by the Dewsbury Corporation Tramways Orders of 1904 1911 and 1912 the Corporation were authorised to construct the tramways therein respectively described (hereinafter respectively referred to as the Orders of 1904 1911 and 1912 and the tramways of 1904 1911 and 1912):

And whereas the tramways of 1911 and 1912 have not been constructed :

And whereas the tramway of 1904 is being worked by the National Electric Construction Company Limited in pursuance of an agreement with the Corporation :

And whereas the company own and work certain light railways and tramways within and beyond the borough and work certain other light railways and tramways within the borough under leases from the Corporation :

And whereas the Corporation are promoting a Bill (hereinafter called "the Bill") in Parliament to authorise them (inter alia)—

- (a) To construct a tramway commencing by a junction with the light railways leased to the company by the Corporation and terminating by a junction with the tramway of 1904 ;
- (b) To make junctions between the tramway of 1911 and the tramway of 1904 and the new tramway specified in the Bill and between the said new tramway and the light railways leased to the company by the Corporation and between the said light railways and the tramway of 1912 ;
- (c) To run over part of the tramway of 1904 :

A.D. 1915. Now it is hereby agreed by and between the parties hereto as follows:—

1. Section 5 of the Order of 1912 shall apply to all junctions made under the Bill. The junctions between the light railways in the Market Place Dewsbury leased to the company and the new tramway and the consequent alterations to the said light railways shall be so constructed as to afford to the company terminal and traffic facilities equally good with those afforded by the existing lines including if necessary the utilisation for such purposes of the new tramway and having regard to the passage and accommodation of cars passing under the terms of this agreement between the new tramway and the light railways. Such junctions and alterations shall be made at the sole expense of the Corporation and the company shall not be required to maintain any greater extent of permanent way or paving than provided for under the leases by which they now hold and work the said light railways by reason of any such alterations.

2. If and when the Corporation construct the tramway of 1912 the work including the rails points crossings junctions sub-structure permanent way overhead equipment electrical feeders apparatus and connections shall be carried out in accordance with plans and particulars previously reasonably approved by the Company.

3. When and so soon as the tramway of 1912 shall have been completed as aforesaid and opened for the public the company shall work the same for and on behalf of the Corporation.

4. The company shall provide to the reasonable satisfaction of the Corporation the cars and every requirement necessary for managing and operating the tramway of 1912 other than the things to be provided by the Corporation under this agreement.

5. The Corporation shall repair and maintain the rails and sub-structure permanent way and all cables feeders and connections up to and including section boxes and the company shall carry out all necessary repairs and maintenance to the overhead electrical equipment from section boxes including poles brackets supports and guard and trolley wires.

6. The Corporation shall provide the electricity necessary for running the cars on the tramway of 1912 and maintain such supply at a voltage of not less than five hundred volts and not more than five hundred and fifty volts.

7.—(1) The Corporation shall be responsible for and shall indemnify the company in respect of all accidents due to any act or default of the Corporation in carrying out the provisions of this agreement or to any defect in the work executed or the supply of electricity hereunder and all claims actions and damages in connection therewith but their

responsibility in respect of accidents due to the overhead electrical equipment shall be limited to the period of six months after the tramway is opened for the public. A.D. 1915.

(2) Except as aforesaid the Corporation shall not be responsible in respect of any claim arising out of any accident in the working of the tramway or out of any act or default of the company and in the event of any such claim being made against the Corporation the company shall indemnify the Corporation in respect thereof and of any consequences thereof.

8. The tramways worked by the company under this agreement shall be worked by them in their own name.

9. The services to be run on the tramway of 1912 shall be such as may be from time to time reasonably required by the Corporation but such requirements shall provide for a minimum car mileage of thirty thousand miles per annum for every mile of route on the said tramway and such minimum car mileage shall for the purposes of clause 12 hereof be deemed to have been run except to such extent as it is not run owing to any neglect or default of the company or to a strike or lock-out. Except in the case of special services on special occasions the Corporation shall give one month's notice of any alteration in their requirements as to the services to be run. The requirements of the Corporation as to special services shall not require the service of more than six additional cars.

10.—(1) The company shall issue such tickets in respect wholly or partly of the tramway of 1912 and charge such fares therefor as the Corporation may determine and in the working of the said services the company shall if the Corporation so require so arrange that each car shall in every journey run into or through the Market Place Dewsbury.

(2) Provided that the fare between the Market Place Dewsbury and the termination of the tramway of 1912 at Dewsbury Gate shall not be less than the fare charged by the company on their light railway between the Market Place Dewsbury and the Butchers Arms in the borough of Batley.

11.—(1) On all cars running over the tramway of 1912 and any part of the light railways or tramways of or leased to the company the fares received shall be divided in proportion to the distance for which the tickets are issued.

(2) Provided that the company shall be entitled to not less than *·225d.* for every passenger who takes a ticket entitling him to be carried over any part of the light railways leased to the company between Willans Road and Dewsbury Market Place.

12. The Corporation shall pay to the company fivepence per car mile for all passenger cars run on the tramway of 1912 during the

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A.D. 1915. — first half of the period from the date of the opening of the tramway for the public to the date of the termination of this agreement and for the remaining half of such period fivepence farthing per car mile.

13. The company shall be entitled to retain all receipts from parcels traffic on the tramway of 1912 and the amounts to which they shall be entitled under clauses 11 and 12 hereof and shall pay over the balance of all receipts or revenue from or in respect of that tramway and the cars thereon to the Corporation for each month within fourteen days after the last day of the month.

14. The company shall send to the Corporation in each week a return showing the daily receipts during the previous week in respect of tickets issued entitling passengers to be carried over any part of the tramway of 1912 and the company shall permit the Corporation or their officers at all reasonable times to inspect the books way-bills and all other documents belonging to the company relating to the receipts and revenue hereinbefore referred to.

15. The Corporation may use on such terms as may be agreed or in default of agreement as may be settled by arbitration the tramway of 1912 and the light railways of the company between the junction of that tramway with the light railways and the Market Place together with the electrical equipment thereof for the conveyance of road metal and other materials and things required by the Corporation but not so as to unduly impede obstruct or interfere with the ordinary traffic on the tramway and light railways.

16. The company shall work the tramway of 1912 efficiently to the reasonable satisfaction of the Corporation and the company shall make good to the Corporation any loss of revenue from the said tramway which is due to the neglect or default of the company in such working but the failure on the part of the company to work the tramway owing to strikes or lock-outs shall not be deemed to be their neglect or default And the Corporation shall make good to the company any loss of receipts which the company may sustain owing to any neglect or default of the Corporation.

17. If required by the Corporation so to do the company shall remove any employee of the company who is engaged upon the tramway of 1912 and who is reasonably considered by the Corporation unsatisfactory for the efficient working thereof.

18. This agreement shall remain in force until the determination of the lease dated the tenth day of April nineteen hundred and five and made between the Corporation of the first part the British Electric Traction Company Limited of the second part and the company of the third part.

19. Before commencing the construction of the tramway of 1912 the Corporation may give notice to the company requiring them to

work the tramway of 1911 and the tramway authorised by the Bill and to run over and use so much of the tramway of 1904 as is referred to in the clause of the Bill whereof the marginal note is "Running powers" and in case they shall give such notice clauses 1 to 18 both inclusive (except clauses 10 (2) and 11 (2)) of this agreement shall apply mutatis mutandis to the working of the tramway of 1911 and the tramway authorised by the Bill and clauses 3 4 7 8 9 10 (1) 11 (1) 12 13 14 15 16 17 and 18 of this agreement shall apply mutatis mutandis to so much of the tramway of 1904 as aforesaid Provided that the terms and conditions subject to which so much of the tramway of 1904 as aforesaid shall be run over and used by the company shall be such as may be determined under the clause of the Bill whereof the marginal note is "Running powers" and any sum to be paid in pursuance of that clause shall be paid by the Corporation and the company in such proportions as may be agreed between them or failing agreement as shall be determined by arbitration but the proportion to be paid by the company shall be limited to the matters for the upkeep of which the company are responsible under this agreement in respect of the tramway of 1912.

20. In the event of the company working the tramway of 1911 as well as the tramway of 1912 the company shall run such through cars from the terminus at Shaw Cross to the terminus at Dewsbury Gate as the Corporation may reasonably require.

21. The company shall not run motor omnibuses over the route of any part of the tramway of 1911 or the tramway of 1912 after the completion of those tramways respectively and the company shall not run motor omnibuses carrying passengers at a lower fare than threepence along any part of the route of the tramway of 1904.

22. In the event of the tramway of 1911 being constructed by the Corporation and being worked by either the Corporation or the National Electric Construction Company Limited—

(1) The company shall grant to the Corporation or to that company (as the case may be) such running powers as the Corporation may reasonably require over the tramway of 1912 and over so much of Railway No. 1 and Railway No. 2 authorised by the Spen Valley Light Railway Order 1901 as is situate between the commencement of the tramway of 1912 and the commencement of the tramway authorised by the Bill; and

(2) The Corporation shall at the request of the company grant to the company the like running powers over the tramway of 1911 and the tramway authorised by the Bill.

The running powers under this clause shall be granted on such terms as may be agreed or in default of agreement may be settled by

A.D. 1915. arbitration but unless otherwise agreed shall only be exerciseable for cars running over the tramway of 1911 and the tramway of 1912 between the entrance in Leeds Road to the existing football ground at Crown Flatt or a point beyond that entrance and the entrance to the Crow Nest Park or a point beyond that entrance.

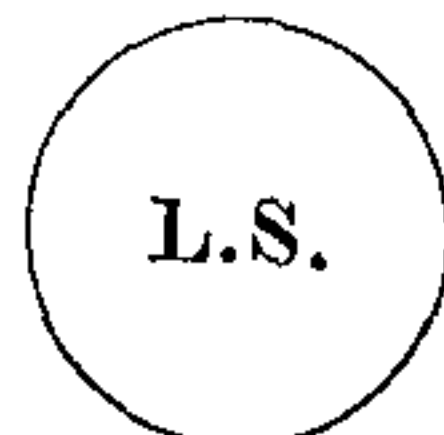
23. Except as provided by this agreement nothing herein contained shall prejudice or affect the rights of the parties hereto under the lease granted by the Corporation to the company of light railways in the borough of Dewsbury.

24. Any dispute whatsoever arising out of this agreement shall be referred to arbitration in the manner provided by the Arbitration Act 1889.

25. This agreement is conditional upon the sanction of Parliament being obtained thereto and is subject to such alterations as Parliament may think fit to make therein Provided that if either House of Parliament shall make any material alteration in this agreement it shall be competent to either party to determine the same by giving notice thereof to the other party before the Bill is read the third time in the House of Lords.

In witness whereof the Corporation and the company have hereunto affixed their respective common seals the day and year first before written.

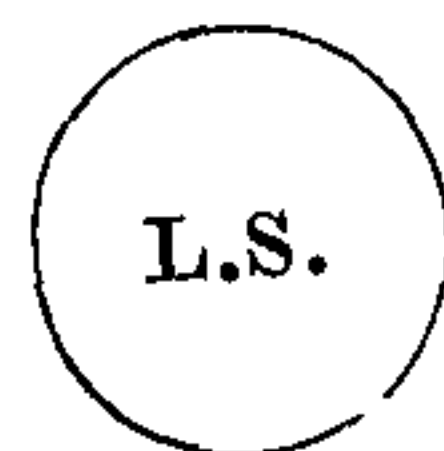
The common seal of the mayor aldermen
and burgesses of the borough of
Dewsbury was hereunto affixed by
Percival Benjamin Walker esquire
the mayor for the time being in the
presence of



H. ELLIS Town Clerk.

PERCIVAL B. WALKER Mayor.

The common seal of the Yorkshire
(Woollen District) Electric Tramways
Limited was hereunto affixed pursuant
to a resolution of the board of
directors in the presence of



E. GARCKE }
E. A. PARIS } Directors.

P. N. GRAY Secretary.

THE SECOND SCHEDULE

A.D. 1915.

Referred to in Section 122.

FORM OF MORTGAGE.

By virtue of the Dewsbury Corporation Act 1915 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Dewsbury (hereinafter referred to as "the Corporation") in consideration of the sum of pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the principal sum such interest to be paid half-yearly on the day of and the day of in each year And it is hereby agreed that the principal sum shall be repaid at in the said borough [(subject as hereinafter provided) on the day of nineteen hundred and] [by]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk of the said borough for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of nineteen hundred and

[Ch. lxxiv.] *Dewsbury Corporation Act, 1915.* [5 & 6 GEO. 5.]

A.D. 1915.

The Endorsement within referred to.

The within-named _____ consenting the
within-mentioned time for repayment of the within-mentioned principal
sum of _____ is hereby extended
to the _____ day of _____ nineteen
hundred and _____ [and the interest to be paid thereon on and
from the _____ day of _____ nineteen hundred
and _____ is hereby declared to be at the rate
of _____ per centum per annum].

Dated this _____ day of _____ nineteen
hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] _____ [of _____]
in consideration of the sum of _____ pounds
paid to me by _____ of _____
(hereinafter referred to as "the transferee") do hereby transfer to the
transferee [his] executors administrators and assigns [the within-written
security] [the mortgage number _____ of the revenues
of the mayor aldermen and burgesses of the borough of Dewsbury
bearing date the _____ day of _____] and all my
right and interest under the same subject to the several conditions on
which I hold the same at the time of the execution hereof and I the
transferee for myself my executors administrators and assigns do
hereby agree to take the said mortgage security subject to the same
conditions.

Dated this _____ day of _____ nineteen
hundred and _____

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FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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